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Political Research Quarterly
1–17
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DOI: 10.1177/1065912920987078
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Who Punishes More? Partisanship, Punitive Policies, and the Puzzle of Democratic Governors

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Abstract

The growth of the carceral state over the last few decades has been remarkable, with millions of Americans in prison, jail, on parole or probation. Political science explanations of this phenomenon identify partisanship as a key explanatory variable in the adoption of punitive policies; by this theory, Republicans are the driving force behind growing incarceration. This article argues this explanation is incomplete and instead emphasizes the bipartisan coalition that constructed the carceral state. I argue Democratic governors are incentivized to pursue more punitive policies to compete with Republicans when those Democrats are electorally vulnerable. I test this proposition using a series of regression discontinuity designs and find causal evidence for Democrats' complicity in the expansion of the carceral state. Democratic governors who barely win their elections *outspend and outincarcerate* their Republican counterparts. This article highlights Democrats' role as key architects in the creation of vast criminal justice institutions in the states when those Democrats are electorally vulnerable.

Keywords

Democrats, governors, criminal justice, state politics and policy, incarceration

> People say to me, "well Ann, what does that say about Texas that we've got the largest prison system in the world?" . . . And I say, it says if you commit a crime in Texas we've got a place to lock you up. . . . If you do the crime, you're going to do the time.
>
> —Ann Richards (D-TX) campaign ad[1], 1994

> I can be nicked on a lot, but no one can say I'm soft on crime.
>
> —Bill Clinton[2] (D-AR), 1992

In 1992, then-Governor of Arkansas Bill Clinton ran for president. Throughout the race, he was determined to seem tough-on-crime, a strategy that culminated in him flying back to oversee the execution of a mentally disabled man in Arkansas during the campaign (Mauer 2016). Clinton was not alone: across the country, Democratic governors like Ann Richards of Texas and Mario Cuomo of New York presided over vast expansions of the prison system and extensions of punitive laws (Ambar 2018; Perkinson 2010). An example of Democrats moving to the right on crime is illustrated poignantly by the tough Violent Crime Control and Law Enforcement Act of 1994 and its strident Democratic supporters, especially Bill Clinton and Joe Biden (Mauer 2016). However, despite this anecdotal evidence of Democratic support of more punitive policy, we do not yet know the extent of this support and how distinct Republicans and Democrats were and are in their preferences on criminal justice in the states.

This question — how punitive were and are Democratic governors? — is especially important because of the vast expansion of our criminal legal system. In the past few decades, few institutions in the United States have grown faster than the carceral state: in 2016, over 6.5 million Americans were under some form of correctional control, in prison, jail, on parole or probation, up from 2 million only three decades ago (Kaeble and Cowhig 2018; The Pew Center on the States 2009). This massive rise in the number of adults under correctional control has been matched with commensurate increases in the money shifted to this priority, as corrections is now the fifth-largest category of state spending, after education, public welfare, health and hospitals, and highways (Kyckelhahn 2014). States have prioritized criminal justice in both their policy and their budgets, as the public became more

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punitive and demanded more punitive policy action as a result (Beckett 1997; Enns 2016; Scheingold 1995).

The expansion of carceral institutions has not escaped scholarly attention, with studies examining distinct outcomes like incarceration rates, reentry programs, and felon disenfranchisement laws, among many others (Behrens, Uggen, and Manza 2003; Jacobs and Carmichael 2001; Percival 2016; Smith 2004). Within these studies, partisanship is often the focus, as Republicans are theorized to contribute to the growth and expansion of the carceral state (Beckett 1997; Smith 2004). However, growing attention has been paid to the presence of strange bedfellows in encouraging the development of punitive institutions, like women's advocacy groups (Gottschalk 2006) and Democrats (Hinton 2016; Murakawa 2014). The bipartisan consensus that gave rise to a variety of carceral institutions at all levels of government is the focus of some studies chronicling the expansion of the carceral state (e.g., Gottschalk 2008; Hinton 2016; Kohler-Hausmann 2015; Murakawa 2014), but it is not clear how complicit Democrats were in the expansion of punitive institutions at the state level. I argue Democrats are key architects of the carceral state in those election-years in which Democrats barely win, and that electoral competition is an essential conditioning factor in whether and how partisanship influences punitive outcomes.

I look to the states for variation in carceral policies and argue electorally vulnerable Democratic governors will be *more* punitive than their Republican counterparts to compete for voters, as crime is a popular electoral issue. I specifically analyze three outcomes of the carceral state — corrections budgets, incarceration rates, and prison admission rates — to examine whether Democratic states outspend and outincarcerate Republican states. I use regression discontinuity (RD) designs to test this claim using election returns from 1982 to 2016. I find Democratic gubernatorial candidates who barely win increase corrections spending by approximately $15 per capita and find some tentative evidence they increase both incarceration and prison admissions rates as well. These results highlight the bipartisan coalition that created the carceral state. Electorally vulnerable Democrats were at the forefront of cementing corrections as a key policy priority for the states in the last three decades. How should we evaluate punitive policy adoptions knowing Democrats were key architects of the carceral state? This is especially important considering one in thirteen Americans is now under some form of correctional control (The Pew Center on the States 2009): how did we get here?

Carceral State Expansion and Electoral Competition

Social scientists studying the growth of the carceral state over the last four decades offer a variety of explanations, including the punitive impulses toward the racially and economically marginalized and the strength of conservative politicians (Beckett 1997; Caldeira and Cowart 1980; Garland 2002; Greenberg and West 2001; Jacobs and Helms 1999; Smith 2004; Stucky, Heimer, and Lang 2007; Wacquant 2009). However, empirical evidence around these theories has been mixed, with inconsistent evidence that either economic or racial inequality — or Republican political power — has expanded the carceral state (Jacobs and Carmichael 2001; Smith 2004).

This study takes on a different mechanism to explain the rise of punitive policies, concentrating on the interaction between partisanship and electoral competition. I argue *Democratic* governors are incentivized to prioritize punitive crime policy in an effort to win over voters. I focus on Democratic governors specifically as they are the state leaders of their parties and possess significant autonomy in the creation and administration of policy (Barrilleaux and Berkman 2003; Beland and Oloomi 2017; Fredriksson, Wang, and Warren 2013; List and Sturm 2006). This is not to suggest that state legislators[3] do not face similar pressures, but that governors may be uniquely sensitive to those pressures from their position of party leadership.

Existing research suggests electoral competition has two key effects on politicians' behavior. First, electoral competition is theorized to produce more liberal policy outcomes, as individuals in lower socioeconomic classes become a larger part of the electoral constituency and demand policies in line with their interests (Barrilleaux and Berkman 2003; Holbrook and Van Dunk 1993; Key 1949). Officials will seek growth-promoting policies to appeal to swing voters when they are electorally vulnerable (Besley, Persson, and Sturm 2010; Griffin 2006). Second, beyond liberal policies, electoral competition broadens the kinds of constituents politicians must cater to. Closer races force politicians to forge broader coalitions of support and promise higher rewards to their supporters (Barrilleaux, Holbrook, and Langer 2002). Similarly, electoral pressures encourage politicians to be more responsive[4] to constituent interests to maintain their winning margin (Griffin 2006). This article bridges the gap between economics, state politics, and the politics of punishment, to propose a significant policy governors have both the means and the motivation to influence: crime.

Crime

Over the last few decades, the amount of citizen and media attention paid to crime has skyrocketed as politicians harnessed punitive public attitudes toward crime to pursue a variety of carceral policies (Beckett 1997). Indeed, most troubling is the association between *decreasing* crime rates and increased public attention and

preference for punitive responses to criminal activity (Scheingold 1995). Although scholars disagree about whether this shift to more punitive attitudes is driven by elites like politicians or the public (e.g., Beckett 1997; Enns 2016; Scheingold 1995), individuals at all strata of political power in the United States paid more attention to crime in the last few decades than they ever did before.

There are a few reasons for the public's growing punitiveness, the primary one of which deserves mention here: the effect of racial attitudes. Crime and the construction of the carceral state has been continuously mired in questions of race and racism, as communities of color, particularly men of color, are disproportionately impacted by the criminal legal system (Alexander 2010). Just like racial attitudes affect politicians' framing and use of crime as a campaign issue (Beckett 1997), they too affect the public's evaluation of crime. For example, whites are more likely to be punitive if the offender is Black, if the crime is violent, and if they are specifically cued with racially significant words (i.e., inner city; Hurwitz and Peffley 1997, 2005). Politicians fomented these racial fears in discussions around crime.

As the public began identifying crime and punishment as a primary concern, the tough on crime rhetoric of Republicans like Richard Nixon, Ronald Reagan, and George H.W. Bush soared in popularity among both Republicans and Democrats (Tonry 2010). Democrats were afraid to look weak on crime and instead supported policies at least as punitive or even more punitive than their Republican counterparts (Campbell 2018). The partisan attitudes toward crime and punishment began to merge, as Democrats adopted tough on crime measures to curry electoral favor and siphon voters who were voting Republican because of their crime platform (Campbell and Schoenfeld 2013; Donnelly 2017; Lynch 2009; Phelps and Pager 2016).

This perspective is similar to one argued in the issue uptake literature, that representatives take on the issues of their formidable opponents to boost their popularity among voters (Sulkin 2005). Holian (2004) chronicles how Clinton, for example, "stole" the issue of crime from Republicans and was able to gather media attention to his leadership on the issue. By 1998, Republicans had effectively lost the crime advantage to Democrats, though both parties did and continue to campaign on the issue (Sides 2006). And, once Democratic politicians in the 1980s and 1990s began toughening their rhetoric, they effectively spun the issue to capture voters interested in or worried about crime (Holian 2004; Riker 1986).

The increasingly punitive turn of the party culminated with politicians like Biden and Clinton pursuing punitive policies in an effort to "one-up" Republicans: the primary example of this phenomenon is the passage of the Violent Crime Control and Law Enforcement Act of 1994 that funded thousands of police officers and escalated the number of death penalty eligible crimes, among other punitive measures (Murakawa 2014). Clinton adopted policies even more pro-law enforcement than Republicans, signing laws to expand prison construction and toughen criminal sentencing, and Congressional Democrats who voted for less punitive policies when public concern about crime was high were punished by voters (Campbell 2018; Canes-Wrone, Minozzi, and Reveley 2011). Although Clinton and Biden were national party elites, Democrats across the country in all elected offices[5] similarly changed their tune to be more punitive to compete with Republicans (Campbell and Schoenfeld 2013). These effects could be even further compounded by additional factors such as constituent pressure from rural districts that favored prison building as a means of economic rejuvenation (Thorpe 2015). These pressures from voters and party elites combined to spur Democrats to try and steal the issue of crime from Republicans by emphasizing punitive rhetoric and praising policies like prison construction, enhancement of criminal sentencing, and the expansion of state budgets on public safety (Beland and Oloomi 2017; Holian 2004; Murakawa 2014; Perkinson 2010).

Current research identifies these patterns of bipartisan support for the carceral state, but the literature is missing two components. Some scholars identified key presidential or senatorial actors in furthering the carceral state (Campbell 2018; Hinton 2016; Murakawa 2014; Tonry 2010), while others conducted in-depth case studies of individual states to glean patterns of bipartisan support for carceral measures (Lynch 2009; Simon 2007). Although these are both important venues for researching this phenomenon, they do not provide a comprehensive view of state decision making on criminal justice. Similarly, we have little quantitative evidence of this bipartisan support. Case studies and historical research help to identify these important nuanced patterns (e.g., Campbell and Schoenfeld 2013; Hinton 2016; Lynch 2009; Murakawa 2014), but they do not identify systematic quantitative patterns of Democratic support for punitive criminal measures.

I focus on governors specifically because they are essential state actors that wield considerable influence over the construction of state budgets and priorities more generally (Barrilleaux and Berkman 2003; Kousser and Phillips 2012). In particular, I argue governors will be especially sensitive to pressures to move right on criminal justice because they serve wider constituencies than state legislators and need a broader coalition of voters to win (Barrilleaux, Holbrook, and Langer 2002; Bernick 2016). Moreover, I posit this effect will be the strongest in the states in which Democratic candidates for governor face the strongest opposition, to effectively merge

the criminal justice platforms of both parties to garner votes (Thorpe 2015). This is similar to national-level dynamics, in which presidents are more responsive to public opinion when an election is near and if they possess only average approval ratings, thus spurring them to adopt policy positions close to public opinion (Canes-Wrone and Shotts 2004).

I consider multiple punitive policies, one of which is state corrections budgets. This kind of spending includes expenditures on prisons, reentry programs like parole and probation, and personnel costs. The bulk of this spending is on institutional corrections, such as prisons, as states spend approximately 80 percent of their total corrections budget on these features (Kyckelhahn 2014). I argue Democratic governors are incentivized to spend more on corrections in the face of electoral vulnerability in an effort to cull support from voters anxious about crime. I argue this choice is not a zero-sum one, whereby Democratic governors increase crime spending to the detriment of other policy areas like education or healthcare, as it is relatively easy to secure corrections funding since the issue is popular with voters (Gilmore 2007).

> **Hypothesis 1:** States with Democratic gubernatorial candidates who barely win will spend more on corrections than Republican gubernatorial candidates who barely win.

I argue Democratic gubernatorial candidates will do more than alter budgetary priorities, but will translate this into active state policy action and increase the incarceration rate, the second dependent variable. This translation from substantive budgetary proposals to policy reality can happen in multiple ways, either top-down or bottom-up (i.e., governors create policy directly *or* lower level bureaucrats and other civil servants like legislators or the police behave differently and more punitively in response to governors' attitudes about crime).

Although both of these are likely spurring carceral state growth (and I am agnostic about which), I argue it is more likely governors are driving punitive policy design *directly*, in a top-down fashion. For instance, Democratic governors like Ann Richards of Texas and Mario Cuomo of New York both presided over massive prison construction programs while they were in office, programs they explicitly supported and championed (Ambar 2018; Greenberg and West 2001; Perkinson 2010). Governors can influence the incarceration rate directly by drafting budgets that ramp up funding for prisons (see Hypothesis 1); appointing administrators and other political actors that prefer punitive responses to crime; and/or expressing support for prison construction in public remarks or State of the State speeches (Kousser and Phillips 2012; Perkinson 2010; Unah and Coggins 2013). All of these actions indicate a top-down shift in priorities to a more punitive criminal legal system.

> **Hypothesis 2:** States with Democratic gubernatorial candidates who barely win will incarcerate people at a higher rate than Republican gubernatorial candidates who barely win.

The final hypothesis emphasizes *prison admissions rates*, the number of new people incarcerated each year. This alternative focus is intuitive: though over 1.3 million people were incarcerated in state prisons in 2017, for example, only about 550,000 people were *admitted* that year (Bronson and Carson 2019). We might expect governors to be able to exert more control over prison admissions than the overall incarceration rate, as the number of prison admissions is directly and immediately impacted by the adoption of punitive policies by political actors like governors. Incarceration rates, on the contrary, are not only shaped by changes in current punitive policy but also the punitive policy decisions of policymakers years prior (Spelman 2009). Therefore, I expect Democratic governors to affect the prison admissions rate, via the adoption of punitive policies and other measures to increase the number of new people locked up each year.

> **Hypothesis 3:** States with Democratic gubernatorial candidates who barely win will admit a higher rate of people to prisons than Republican gubernatorial candidates who barely win.

Data and Methods

To analyze my hypotheses, I need data on electoral fortunes of gubernatorial candidates and punitiveness. The independent variable is the two-party vote margin of the Democratic candidate in the last election (Jensen and Beyle 2003; Klarner 2013). This variable reflects the difference[6] between the Democratic gubernatorial candidate's two-party vote share and 50 percent: for example, a Democratic candidate who received 53 percent of the vote has a 3 percent vote margin. Figure 1 shows this variable over the time period of my data, 1982 to 2016. The races are, on average, very close, with a mean margin of victory of approximately −0.39 (i.e., a Democratic candidate who received 49.61% of the vote), though there are races where the Democratic candidate receives nearly none or nearly all of the votes. Note that Figure 1 and all subsequent analyses only consider *two-party* vote share. The very few states with Independent governors in this time period are excluded. Moreover, the hypotheses consider those elections in which Democratic candidates 'barely won': this quantity is vague on purpose, as explained below, though for the purposes of this article it

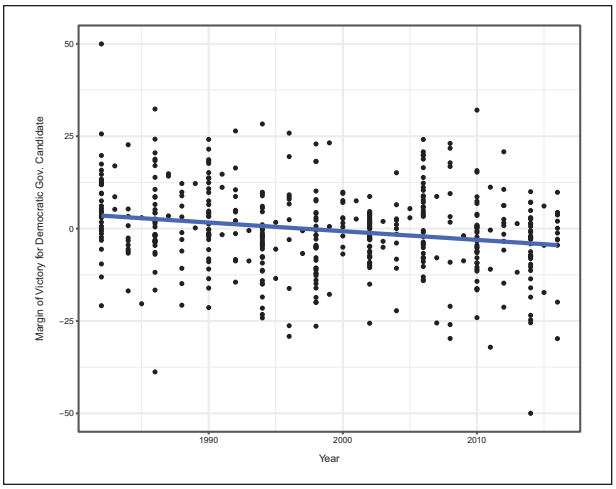

Figure 1. Margin of victory for Democratic gubernatorial candidates, 1982 to 2016.
Observations are state-election years.

largely refers to those elections in which a Democratic candidate receives between 40 and 60 percent of the vote.

The first dependent variable is inflation-adjusted corrections spending per capita, collected from the Bureau of Justice Statistics (BJS). The average state in this time period spent approximately $57 per capita on corrections, though some spent over $150 per capita on this category (mostly smaller states, like Alaska and Delaware). The second and third dependent variable — incarceration rate and prison admissions rate — come from BJS[7] and represent the rate of people incarcerated or admitted to prison each year per 100,000 state population. The average state in the sample had an incarceration rate of about 317 per 100,000 state population, and a prison admissions rate of about 169 people per 100,000 population. Importantly, all variables reflect punishment for *all* types of crimes, including violent, property, and drug crimes. Although scholars often cite drug crimes as much of the source of the rise of the carceral state (e.g., Alexander 2010), violent crimes are also an important part of the increase in incarceration rates, corrections spending, and prison admissions (e.g., Pfaff 2017). Because I argue electorally vulnerable Democratic governors ought to increase spending on corrections generally, and increase the incarceration and prison admissions rates of *all* crimes, I do not subset them to their crime-specific components (though that is an important avenue for future research).

Longitudinal Ordinary Least Squares

I begin with an ordinary least squares (OLS) model with two-way fixed effects[8] and standard errors clustered by state. The variables are also lagged, so the dependent variable reflects spending or incarceration or admissions rates in year $t + 1$, whereas all other variables are from year t. The sample only includes state-election years.

$$\begin{aligned} y_{i,t+1} = \alpha_i + \delta_t &+ \beta 1 \textit{Governor Margin}_{i,t} \\ &+ \beta 2 \textit{Democratic Governor}_{i,t} \\ &+ \beta_3 \textit{Gov. Margin} \times \textit{Dem. Gov.}_{i,t} \\ &+ X_{i,t} + \varepsilon_{i,t} \end{aligned} \tag{1}$$

In equation (1), $y_{i,t+1}$ is either the inflation-adjusted per capita corrections spending, incarceration rate, or prison admissions rate in a given state and year. Governor margin is the difference between the Democratic gubernatorial candidate's two-party vote share and 50 percent (Klarner 2013). I also include a dummy variable for the partisanship of the governor (1 if Democratic, 0 if Republican or Independent), information gathered from the National Conference on State Legislatures (NCSL) and the Book of the States. Finally, I interact these two variables to estimate how corrections spending changes for Democratic governors at varying margins of victory.

$X_{i,t}$ represents a matrix of control variables that may influence carceral outcomes: Democratic legislature, violent crime rate, proportion Black in the state population, divided government, policy liberalism, property crime rate, the number of felons ineligible to vote, and either incarceration rate and prison admissions rate or total per capita corrections spending. Democratic legislature is a dummy variable for whether the state legislature is Democratic (i.e., both chambers are controlled by Democrats), from NCSL and Book of the States. Violent and property crime rates represent the number of violent or property crimes per 100,000 people, collected from the FBI's Uniform Crime Reports. Proportion Black is from the Census Bureau. Divided government takes on the value of 1 when the governor and state legislature are not controlled by the same party. Median policy liberalism comes from Caughey and Warshaw (2016) and represents that state's policy liberalism in that year. The number of felons ineligible to vote comes from Jordan and Grossmann (2020) and McDonald (2012). I also include the other dependent variables in each specification: when the dependent variable is total per capita corrections spending, I use both the incarceration and prison admissions rate as a control variable, and vice versa. I chose the other control variables as they are commonly used in this literature to reflect stresses on the criminal legal system and important political constraints governors may face while crafting corrections policy. Proportion Black is included to account for the potential of race influencing carceral outcomes (Garland 2002). See supplemental appendix for the correlation matrix and summary statistics for these variables.

Table 1. Ordinary Least Squares Model of Democratic Margin of Victory: Corrections Spending, Incarceration, and Prison Admissions.

	Per capita corrections spending		Incarceration rate		Prison admissions rate	
	(1)	(2)	(3)	(4)	(5)	(6)
Dem. margin of victory	−0.106	−0.097	−0.283	0.175	−0.873*	−0.509
	(0.078)	(0.075)	(0.407)	(0.417)	(0.476)	(0.477)
Dem. governor	1.083	0.720	−5.353	−0.272	4.602	0.616
	(1.255)	(1.313)	(4.733)	(5.131)	(6.664)	(7.066)
Dem. legislature	2.081	0.825	−28.625***	−6.322	19.149*	21.083**
	(2.155)	(1.839)	(9.860)	(8.072)	(10.799)	(9.208)
Incarceration rate		0.072***				
		(0.016)				
Prison admissions rate		0.028*				
		(0.016)				
Per capita corrections spending				1.141***		0.343
				(0.299)		(0.427)
Proportion Black		28.364		−121.956		−332.297*
		(42.416)		(120.665)		(171.290)
Violent crime rate		0.021*		0.103**		0.202***
		(0.012)		(0.049)		(0.070)
Divided govt		−2.463**		0.634		−3.307
		(1.201)		(4.452)		(5.808)
Policy liberalism		7.286**		−35.252**		−3.342
		(3.293)		(14.256)		(17.385)
Property crime rate		−0.002		0.0004		−0.0001
		(0.002)		(0.011)		(0.011)
No. of felons ineligible to vote		−0.00002		0.001***		0.0002
		(0.00002)		(0.0003)		(0.0002)
Margin × Dem. Gov.	0.069	0.034	−0.029	−0.216	0.194	−0.395
	(0.083)	(0.087)	(0.491)	(0.536)	(0.609)	(0.609)
N	446	402	459	369	460	370
R^2	.861	.873	.916	.941	.744	.754
Adjusted R^2	.828	.845	.897	.927	.685	.697
Residual *SE*	11.316	10.722	50.922	38.536	50.057	47.757
	(df = 361)	(df = 329)	(df = 372)	(df = 298)	(df = 373)	(df = 299)

SEs clustered by state.
*$p < .1$. **$p < .05$. ***$p < .01$.

Columns 1, 3, and 5 of Table 1 include only the explanatory variables of interest, whereas Columns 2, 4, and 6 add control variables. Margin of victory does not appear to significantly predict per capita corrections spending, either on its own or when interacted with the Democratic governor dummy. On the contrary, Democratic legislatures appear to negatively influence the incarceration rate, but they are weakly associated with *increases* in prison admissions rates. The margin of victory variable is only significant in one specification, and the Democratic governor dummy and the interaction term are not significant in any model.

If we trust the analysis in Table 1, it would indicate there is *no* effect of gubernatorial electoral competition on corrections-related outcomes. These results are misleading, however, for a few reasons. Approximately one-third of the sample included in Table 1 are elections with margins of victories above 10 percent or below −10 percent, representing elections that are by no means competitive. Including these observations obscures the relationship between corrections policy and electoral competition in those states that are truly electorally competitive. Moreover, though I use control variables and two-way fixed effects, it is very much possible there is omitted variable bias or other concerns with this estimation. I control for relevant covariates, but it is nearly impossible to directly control for all variables necessary to produce an unbiased estimate of equation (1). We therefore need to

dig deeper into an alternative econometric strategy to investigate how electoral competition affects corrections-related outcomes: regression discontinuity (RD).

Regression Discontinuity

An RD design is a unique methodological approach that approximates a random experiment, as units within the sample with values above a known cutoff are assigned to treatment and those with values below that known cutoff are not (Calonico et al. 2019). We can then learn about the local causal effect of the treatment and compare those that barely exceed the cutoff to those that barely miss the cutoff (Cattaneo, Idrobo, and Titiunik 2019). Using RD to establish causal linkages between partisanship and other outcomes is used most often in the Congressional context, how the nomination of extremist candidates affect a party's general election chances (Hall 2015) or the effect of the incumbency advantage (Hainmueller, Hall, and Snyder 2015). However, a few studies adapted the RD framework to examine how gubernatorial partisanship influences outcomes like presidential vote share (Erikson, Folke, and Snyder 2015) and various policy outcomes and spending on health, public safety, and education (Beland and Oloomi 2017; Leigh 2008).

This design is a causal estimate because it assumes that winners[9] and losers in close races around the cutpoint are "as-if" randomly assigned (in practice, of course, winners and losers of gubernatorial elections are not randomly assigned). RD then estimates a causal effect within a particular bandwidth around that cutpoint, the choice of which can be driven by theoretical considerations or driven by the data to minimize mean squared error (Calonico, Cattaneo, and Titiunik 2014). The independent, or running, variable in my analysis is the vote margin of the Democratic gubernatorial candidate[10] in the last election, as above (Klarner 2013). I look to the same three dependent variables as described prior.

The first step in an RD is a graphical one, to visually identify whether there appears to be a difference in the dependent variables from one side of the cutpoint to the other (Imbens and Lemieux 2008). Figure 2A displays this discontinuity for per capita corrections spending. Indeed, a Democratic governor who barely wins appears to spend more than her Republican counterpart. The jump is fairly dramatic and appears concentrated in close proximity to the 0 percent vote margin. Figure 2B displays the same graph for the second dependent variable, incarceration rate: Democratic gubernatorial candidates who barely win incarcerate at a higher rate than Republican gubernatorial candidates. Finally, Figure 2C reflects a similar pattern to the other figures, in which Democratic governors that barely win appear to be admitting people to prison at a higher rate than Republican governors who barely win.

This plot is not an artifact of my kernel or bin choice, either: Figure 3 contains a straightforward scatterplot of the three dependent variables and the running variable in the whole sample with a fourth-order polynomial fitted line (see supplemental appendix for the same graph with a linear line). This evidence, while not causal, provides some visual evidence that Democratic and Republican gubernatorial candidates behave differently around the cutpoint. Moreover, this pattern is not simply the result of a kernel choice or other methodological decisions of the RD below.

Another important check for a valid RD design is to graph the density of the running variable around the cutpoint. The assumption for this model is that the candidates are not able to precisely manipulate margin of victory, so "the number of treated observations just above the cutoff should be approximately similar to the number of control observations below it" (Cattaneo, Jansson, and Ma 2020, 97). I verify this assumption using manipulation testing (Cattaneo, Jansson, and Ma 2018), graphed visually using rddensity in R, and shown in Figure 4. Encouragingly, there appears to be no strong discontinuity around the cutpoint. This provides evidence that the cutpoint is not being manipulated by the candidates and that they cannot control the assignment variable (victory) near the cutpoint (Lee and Lemieux 2010).

The RD design assumes observations at the cutpoint are assigned[11] as-if-randomly (Imbens and Lemieux 2008). However, it may be the case that covariates contribute to the likelihood that a state will receive treatment, elect a Democratic governor rather than a Republican one. Next, covariates are plotted against the running variable to ensure these variables are continuous around the discontinuity, providing evidence that the "treatment" and "control" groups are balanced in their pre-treatment covariates (Lee and Lemieux 2010). For our purposes, the variables included as control variables in equation (1) act as important checks on this assumption—violent crime rate, proportion Black, split government, Democratic legislature, median policy liberalism, property crime rate, and the number of felons ineligible to vote. I create RD plots for these variables in Figure 5.

These graphs provide reassurance that these control variables do not jump discontinuously at the cutpoint. If we estimate the RD with these covariates as the dependent variables, the effects are statistically insignificant (see Table 2 and the supplemental appendix). I present results both with and without these control variables as these pre-treatment variables help to improve the precision and efficiency of the RD estimates and account for other variables that may explain the discontinuities in

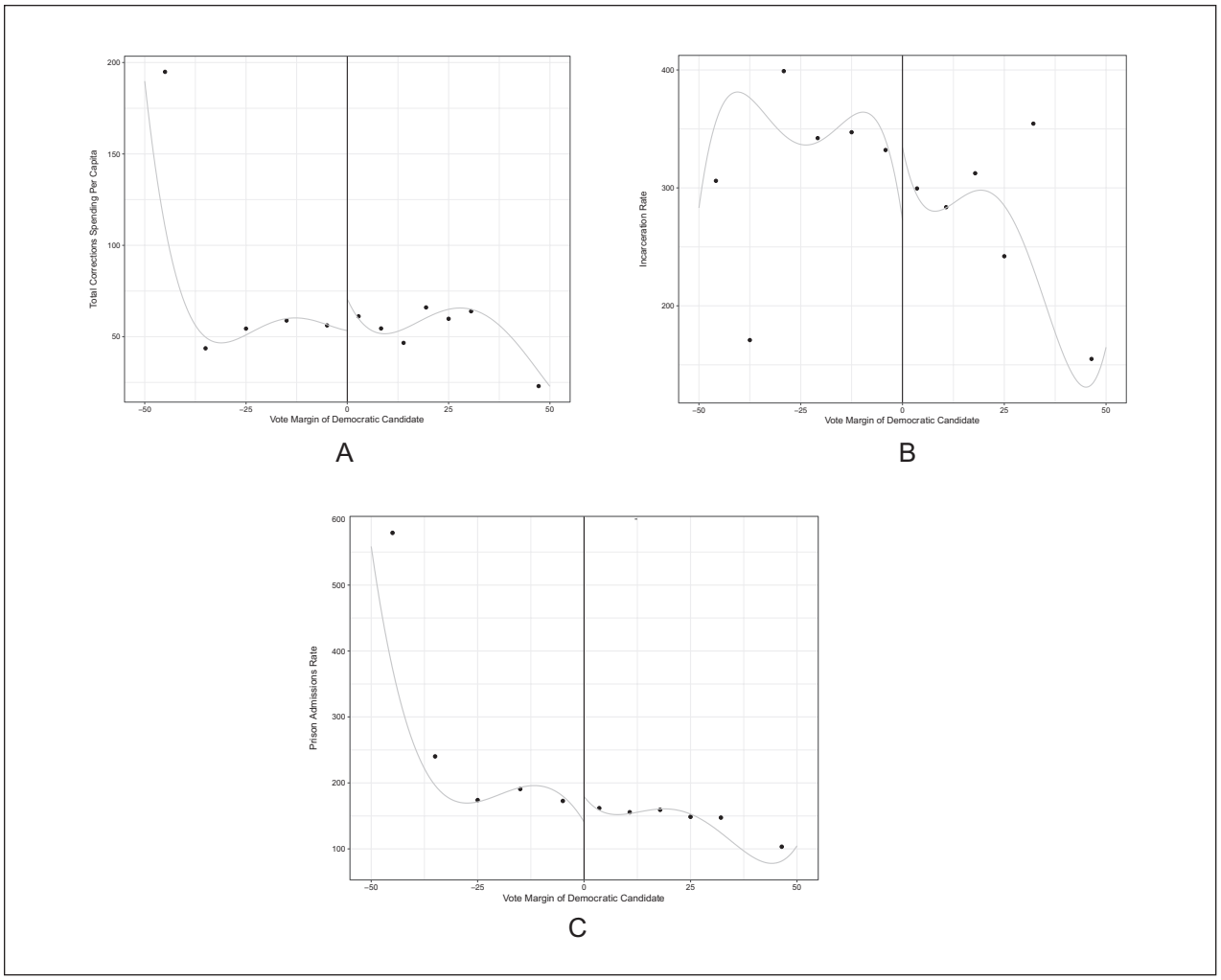

Figure 2. Regression discontinuity plots of the three dependent variables and Democratic gubernatorial vote margin: (A) corrections spending, (B) incarceration rate, and (C) prison admissions rate.
Bins selected using an integrated mean-squared error optimal evenly-spaced method using spacings estimators.

Figures 2 and 3 (Calonico et al. 2019; Imbens and Lemieux 2008).

To estimate this relationship quantitatively, I first consider choice of the bandwidth and the functional form of the local polynomial regression line around the cutpoint (Calonico, Cattaneo, and Titiunik 2014; Imbens and Lemieux 2008). I rely on a data-driven bandwidth selection procedure to avoid selectively choosing bandwidths (Calonico, Cattaneo, and Titiunik 2014; De la Cuesta and Imai 2016). Second, I use a local-linear estimation[12] with a local quadratic bias-correction estimate and a triangular kernel. I also cluster the standard errors by state to eliminate state-specific heterogeneity in the error terms.

The RD estimations below report three different estimations: conventional, bias-corrected, and robust (Calonico, Cattaneo, and Titiunik 2015). Conventional ignores any potential bias in the estimates; bias-corrected accounts for the bias in the estimates; and the robust accounts for the bias in the estimates *and* in the standard error[13] (though I present all below, the robust results are theoretically and empirically superior to the other two; Cattaneo, Idrobo, and Titiunik 2019). Along with coefficient estimates, I also report standard errors, confidence intervals, *p*-values, the data-driven bandwidth choice, and the effective number of observations to the left and right of the cutpoint (i.e., how many observations within the bandwidth are used in the estimation of the RD effect).

Table 3 presents the results for the corrections spending variable. Columns 1 through 3 of the table do not include covariates, whereas Columns 4 through 6 include covariates to improve the precision of the treatment coefficient (Imbens and Lemieux 2008). Across the columns, the coefficients are statistically significant and consistent. Within the approximate 9 percentage

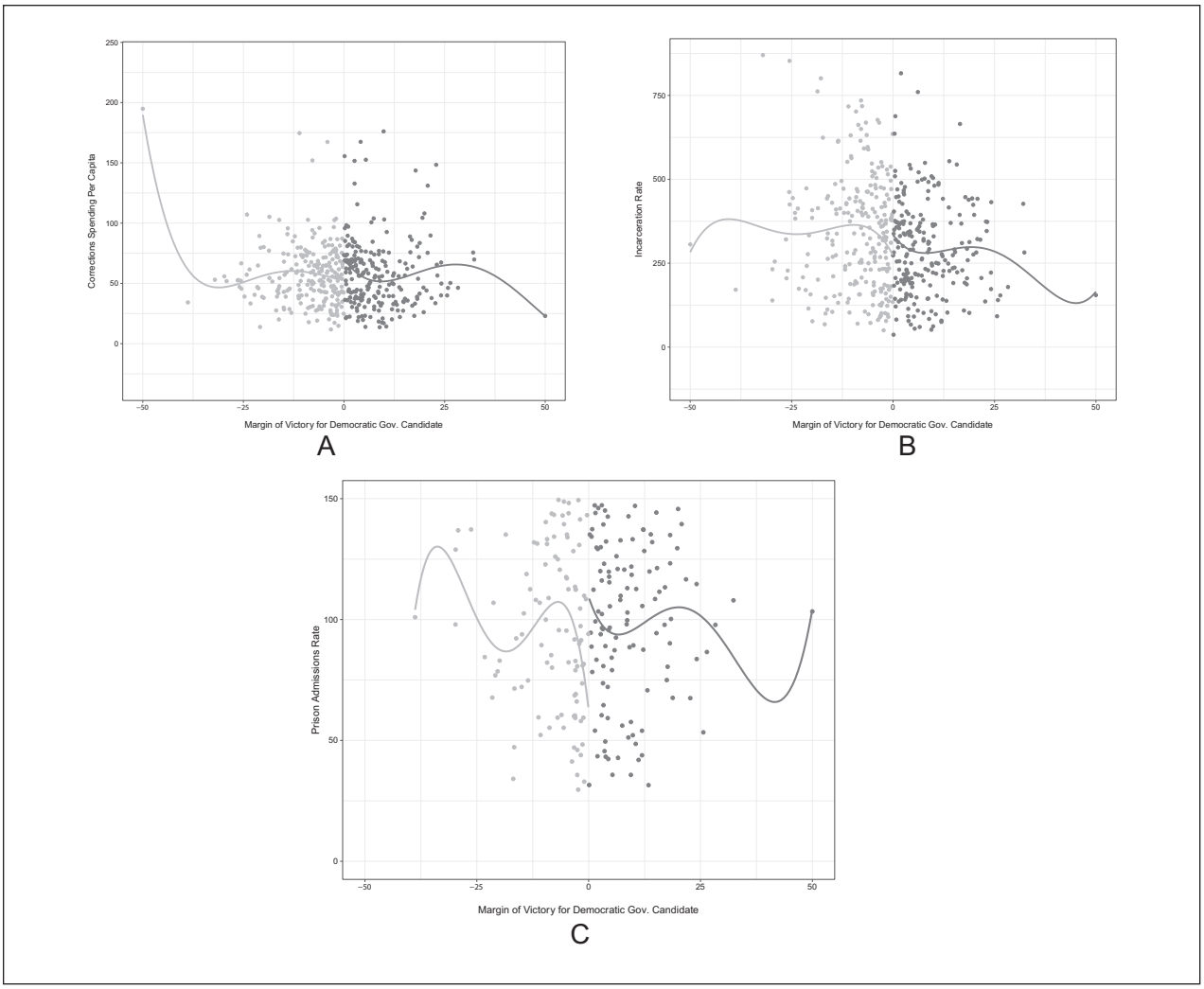

Figure 3. Scatterplots of the three dependent variables and Democratic gubernatorial vote margin with a fourth-order polynomial line: (A) corrections spending, (B) incarceration rate, and (C) prison admissions rate.

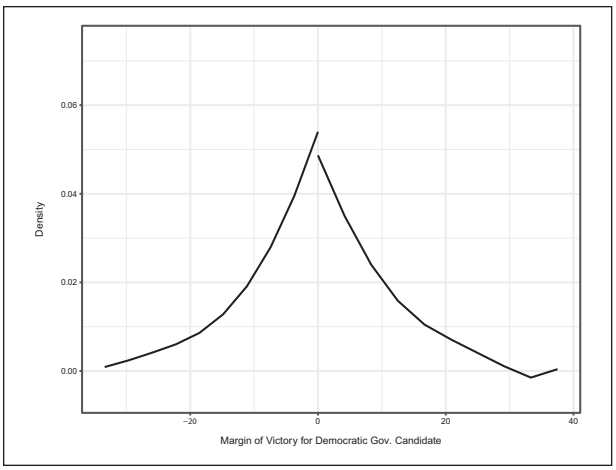

Figure 4. Manipulation testing, using the rddensity package in R. *p*-value for density discontinuity test using jackknife standard errors is 0.7014058.

point bandwidth, as the vote margin of the Democratic gubernatorial candidate increases, so too does corrections spending per capita. These candidates spend $14 to $16 more on corrections per capita. These results suggest that Democratic gubernatorial strength has a direct, causal, and positive influence on corrections spending — Democratic governors spend more than Republican ones do, at least in close races.

Although these results seem consistent with Hypothesis 1, I next use incarceration rate as a dependent variable, and the results are shown in Table 4.

These results are tentative, but relatively consistent with those reported in Table 3 — within the bandwidth, Democratic gubernatorial candidates who barely win incarcerate more than Republican gubernatorial candidates who barely win, but only when I include covariates. When those are included, that effect is substantial, an approximate 55 increase in a state's incarceration

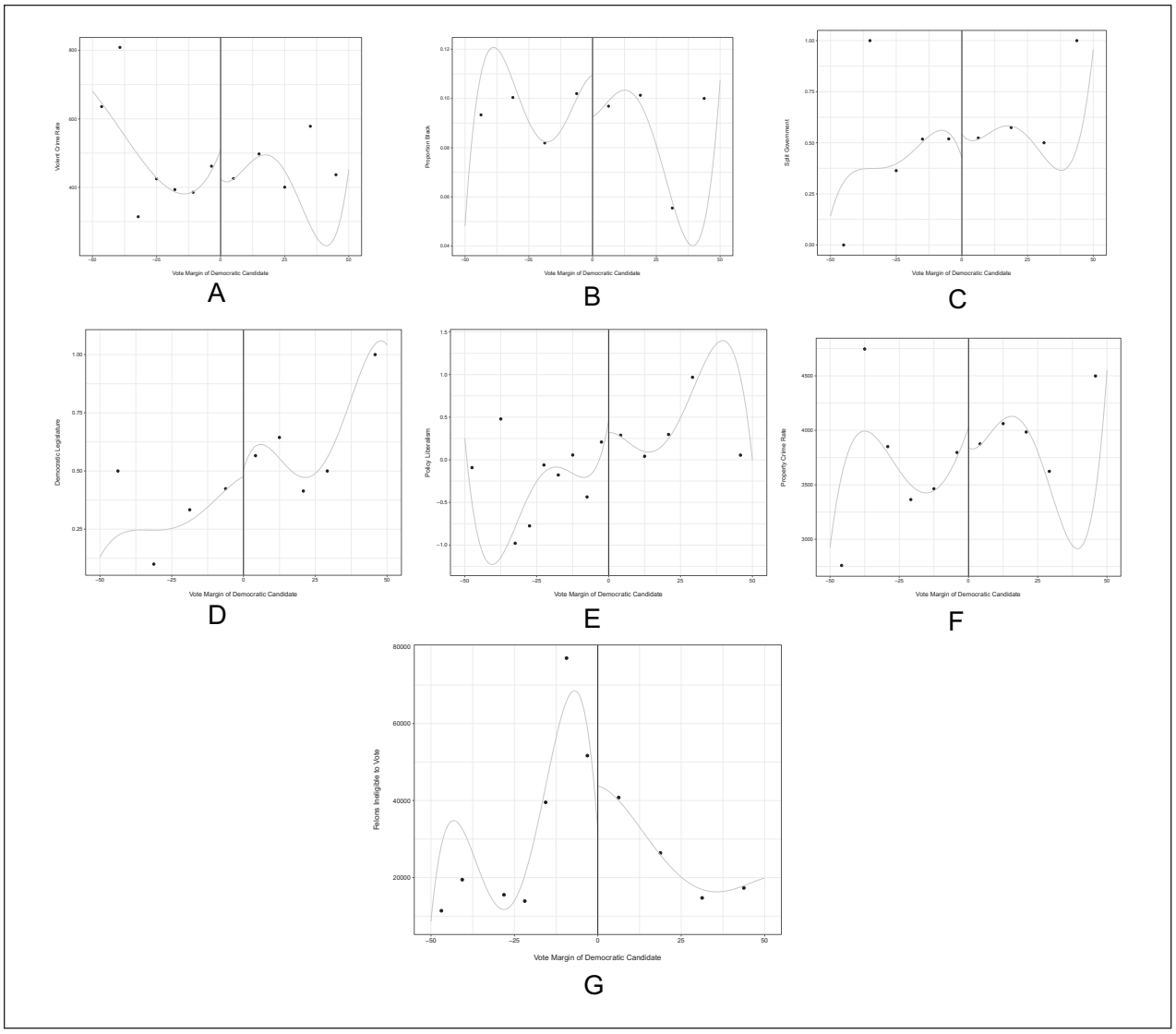

Figure 5. Regression discontinuity plots of (A) violent crime rate, (B) proportion Black, (C) split government, (D) Democratic legislature, (E) median policy liberalism, (F) property crime rate, and (G) the number of felons ineligible to vote; and Democratic gubernatorial vote margin.
Bins selected using an integrated mean-squared error optimal evenly-spaced method using spacings estimators.

Table 2. RD Estimation with a Triangular Kernel and Data-Driven Bandwidth Choice.

Variable	Bandwidth	RD robust estimator	Robust *p* value	Robust CI	Effective num. of obs.
Violent crime rate	7.92	−107.17	.19	[−265.96, 51.62]	132, 122
Proportion Black	9.02	−0.02	.5	[−0.09, 0.04]	148, 139
Split government	10.22	−0.03	.84	[−0.3, 0.24]	157, 154
Democratic legislature	7.52	0.1	.59	[−0.27, 0.48]	127, 124
Policy liberalism	8.54	−0.2	.66	[−1.07, 0.67]	137, 124
Property crime rate	8.02	−222.28	.61	[−1,064.63, 620.06]	133, 123
Felons ineligible to vote	7.71	15,376.06	.43	[−22,887.38, 53,639.5]	120, 113

Dependent variables are covariates in year $t+1$. Standard errors clustered by state. RD = regression discontinuity; CI = confidence interval.

Table 3. RD Estimation with a Triangular Kernel and Data-Driven Bandwidth Choice.

Specification			Specification with Control Variables		
Bias-corrected	Coefficient	16.04	Bias-corrected	Coefficient	22.12
	SE	6.62		*SE*	6.94
	Confidence interval	[3.07, 29.01]		Confidence interval	[8.52, 35.73]
	p Value	.02		*p* Value	
Conventional	Coefficient	14.82	Conventional	Coefficient	20.35
	SE	6.62		*SE*	6.94
	Confidence interval	[1.86, 27.79]		Confidence interval	[6.75, 33.96]
	p Value	.03		*p* Value	
Robust	Coefficient	16.04	Robust	Coefficient	22.12
	SE	7.49		*SE*	7.95
	Confidence interval	[1.36, 30.73]		Confidence interval	[6.54, 37.71]
	p Value	.03		*p* Value	.01
	Bandwidth	9.6		Bandwidth	8.01
	Effective num. of obs (L, R)	150, 140		Effective num. of obs (L, R)	122, 111
	N	446		*N*	405

Dependent variable is corrections spending per capita in year $t+1$. Columns 4 through 6 contain control variables. Standard errors clustered by state.

Table 4. RD Estimation with a Triangular Kernel and Data-Driven Bandwidth Choice.

Specification			Specification with Control Variables		
Bias-corrected	Coefficient	44.33	Bias-corrected	Coefficient	55.67
	SE	42.25		*SE*	32.19
	Confidence interval	[−38.48, 127.14]		Confidence interval	[−7.42, 118.76]
	p Value	.29		*p* Value	.08
Conventional	Coefficient	39.5	Conventional	Coefficient	54.51
	SE	42.25		*SE*	32.19
	Confidence interval	[−43.31, 122.31]		Confidence interval	[−8.58, 117.6]
	p Value	.35		*p* Value	.09
Robust	Coefficient	44.33	Robust	Coefficient	55.67
	SE	51.38		*SE*	39.3
	Confidence interval	[−56.36, 145.02]		Confidence interval	[−21.35, 132.69]
	p Value	.39		*p* Value	.16
	Bandwidth	8.92		Bandwidth	8.08
	Effective num. of obs (L, R)	145, 140		Effective num. of obs (L, R)	122, 111
	N	459		*N*	404

Dependent variable is incarceration rate in year $t+1$. Columns 4 through 6 contain control variables. Standard errors clustered by state.

rate. This is especially significant as the average state's incarceration rate is approximately 317, so a Democratic gubernatorial candidate who barely wins increases a state's incarceration rate by about 17 percent (of those states around the cutpoint; De la Cuesta and Imai 2016). These results should be interpreted with some caution, however, as covariates in an RD estimation are designed to improve precision and should not change the coefficient estimates significantly (Calonico et al. 2019). These differential results are not due to significant discontinuities for these control variables around the cutpoint (see Table 2 and the supplemental appendix), though it could be at least partially driven by the slightly different bandwidth, about a point smaller than the non-covariate adjusted model. Therefore, while the results should be interpreted with some caution, I take Table 4 to be tentative evidence of my argument that Democratic governors increase incarceration rates when electorally vulnerable.

Finally, Table 5 considers prison admissions rates.

These results indicate that Democratic governors who barely win admit about 34 to 48 more prisoners per 100,000 state population in the following year than Republican governors who barely win (though these

Table 5. RD Estimation with a Triangular Kernel and Data-Driven Bandwidth Choice.

Specification			Specification with Control Variables		
Bias-corrected	Coefficient	39.18	Bias-corrected	Coefficient	48.28
	SE	21.02		*SE*	19.93
	Confidence interval	[−2.03, 80.39]		Confidence interval	[9.21, 87.34]
	p Value	.06		*p* Value	.02
Conventional	Coefficient	34.05	Conventional	Coefficient	43.97
	SE	21.02		*SE*	19.93
	Confidence interval	[−7.16, 75.25]		Confidence interval	[4.91, 83.03]
	p Value	.11		*p* Value	.03
Robust	Coefficient	39.18	Robust	Coefficient	48.28
	SE	25.1		*SE*	23.75
	Confidence interval	[−10.01, 88.37]		Confidence interval	[1.72, 94.83]
	p Value	.12		*p* Value	.04
	Bandwidth	8.34		Bandwidth	8.95
	Effective num. of obs (L, R)	141, 128		Effective num. of obs (L, R)	131, 121
	N	460		*N*	405

Dependent variable is prison admissions rate in year $t+1$. Columns 4 through 6 contain control variables. Standard errors clustered by state.

results need to be interpreted with some caution, since the results change in magnitude with the addition of the covariates; see above). This result is again limited to the sample around the cutpoint (Lee and Lemieux 2010), but this pattern is indicative of electoral pressures that Democratic governors who barely win face. Taken together, the results in Tables 3 through 5 provide tentative evidence that Democratic governors who barely win outincarcerate and outspend their Republican counterparts.

There could be several concerns with the design reported here. First, perhaps Democratic governors are increasing portions of the corrections budget that are beneficial to inmates and rehabilitate offenders, in line with the traditional understanding of Democratic views on crime and punishment. I use two alternative dependent variables, the two separate components of corrections spending, current operations (salaries and purchase of supplies) and capital outlay (construction or land acquisition) in the supplemental appendix. Perhaps Democrats spend more on current operations than on capital outlay to improve inmates' experiences. The results are positive and significant for the current operations spending and not for capital outlay, providing some evidence of this phenomenon. However, the average state spends $57 per capita on current operations and only $4 per capita on capital outlay spending, so perhaps Democratic governors alter current operations spending not out of concern for inmates, but because it is the most flexible. I also use an alternative dependent variable of the *percent of the state budget al*located to corrections in the supplementary materials and the results remain significant and positive, but only when controls are included. This suggests Democratic governors are effective at altering the *level* of corrections expenditures and not necessarily overall budgetary priorities.

Second, a vital modeling choice in any RD is the bandwidth. The main results use a data-driven strategy to choose the bandwidth (Calonico, Cattaneo, and Titiunik 2015); however, it may be the case that the actual effect of a Democratic gubernatorial candidate who barely wins on corrections policies is more well suited to the analyst manually choosing the bandwidth. I estimate additional regressions in the supplementary materials and manually choose a bandwidth of either 2 or 10. The results are broadly consistent with those above: a positive and significant relationship between Democratic vote margin and both corrections spending per capita and the prison admissions rate, and an inconsistent relationship with incarceration rate.

Third, perhaps concern about crime was strongest in the 1980s and 1990s, for example, or particularly in the South. In the supplementary materials, I subset the data first, to 1982 through 1999 (the mean year in the data) and from 2000 to 2016 to analyze how these effects may differ depending on the time period (see also the supplemental appendix for summary statistics of this time period). The summary statistics for these variables indicate higher corrections spending and incarceration and prison admissions rates, but lower margins of victories for Democratic governors in the 2000 through 2016 subset. The sample size halves and much of the analyses are no longer significant, likely due to the smaller sample size (and the lower effective number of observations to the left and right of the bandwidth, less than seventy in each regression). However, the magnitude and sign remain similar, providing encouraging evidence that the patterns are not vastly different in one time period.

The difference between Southern and non-Southern states could also be significant. In the supplemental appendix, I ran the analyses on these subsets (and, see the supplemental appendix for summary statistics tables of these subsets). The results stayed significant in the non-Southern subset and became insignificant in the Southern subset, but that is likely due to the *extremely* small sample size (144 observations total and as low as twenty effective observations to the left and right of the bandwidth) and a higher percentage of Democratic governors in the South. However, the magnitude and sign remain relatively consistent, indicating that the results are not driven by the masking of important region variation.

Fourth, what states are included in the bandwidth? An RD estimation only provides an estimate of the running variable (Democratic margin of victory) on the dependent variables *of those state-election years within the bandwidth*. All states except one (Nebraska, which is excluded in the main sample) are represented at least twice within the bandwidth and each year from 1982 to 2016 is represented at least once (see supplemental appendix for more details). Therefore, it does not appear that only certain years or states drive this effect.

Finally, the main specifications analyze the effect of a gubernatorial election on punitive policy outcomes in year $t + 1$. However, it could also be the case these policy changes take even longer than a year to take effect. In the supplemental appendix, I estimate the effect of an election in year t on outcomes in years $t + 2$ and $t + 5$. The results for the expenditures and prison admissions variables are the same. The incarceration variable appears to change more significantly in the longer term, five years after a Democratic gubernatorial victory. This suggests Democratic governors can and do use varying strategies with their corrections policy and may prioritize certain policies to attract voters at different times: increasing corrections spending and prison admissions consistently, but varying the incarceration rate at different points in their administration.

The results here suggest electorally vulnerable Democratic governors will prioritize punitive policies in an effort to woo voters. How does this dynamic work in practice? Former New York Democratic Governor Mario Cuomo is an illustrative example. Cuomo, governor from 1983 to 1994, presided over a massive $7 billion prison construction program and added more prison beds to the state than all the previous governors in New York history combined (Ambar 2018; Schlosser 1998). Cuomo, who once called the prison boom "stupid" (Ambar 2018), turned to rapid prison construction and massive corrections outlays to shield him from charges of being soft on crime, an issue he was particularly vulnerable on since he staunchly opposed the death penalty (Schlosser 1998). Indeed, Cuomo's State of the State speech in 1994 when he was running against Republican opponent George Pataki in the gubernatorial election was so conservative on crime that one Republican in the New York State Senate remarked, "It sounds like a speech that could have been written for me" (though ultimately an unsuccessful strategy as Pataki later beat him; The Baltimore Sun 1994). The electoral pressures weighed heavily on Cuomo and prompted him to turn to the right on crime, evidence of the dynamic proposed here.

Discussion and Conclusion

What is the effect of partisanship on punitive policy outcomes? I examined how electorally vulnerable Democratic governors affect three carceral outcomes, corrections spending, incarceration rates, and prison admission rates. I argue these governors outspend and outincarcerate their Republican counterparts as crime is a popular campaign issue and Democrats feel the pressure to be more punitive than Republicans when they are electorally vulnerable. The results presented here throw a wrench into conventional understandings of the politics of punishment. Democratic governors in close elections *outspend and outincarcerate* their Republican counterparts. This article presents a puzzle that places Democrats squarely at the center of the expansion of state criminal legal systems, following other research that shines light on Democrats' roles in producing the carceral state (Hinton 2016; Murakawa 2014).

Collectively, this article suggests a few implications. First, it emphasizes the importance of clear research designs in analyzing state politics and the politics of punishment. Methods like RD are particularly useful in assessing a clear causal link between these two phenomena. Additionally, though RD has been used widely to study Congressional races (Hainmueller, Hall, and Snyder 2015; Hall 2015), RD remains a relatively under-utilized tool in state politics (though, see Beland and Oloomi 2017; Erikson, Folke, and Snyder 2015; Leigh 2008). This approach provides causal estimates in the politics of punishment literature that while rich in qualitative research does not typically use causal methods to test theories of punitive policy adoption.

There is one important caveat to the results presented here. The RD design and its conclusions are specific to the subpopulation around the discontinuity (De la Cuesta and Imai 2016; Imbens and Lemieux 2008) and have limited external validity outside of those thresholds. This effect is specifically in state-years in which the Democratic gubernatorial candidate received approximately 8 to 9 percentage points more or less than their Republican competitor. This fits into the theoretical argument presented here, as I propose the punitive turn

of the Democrats to be especially strong where that candidate is electorally vulnerable. These governors exert a positive and significant effect on carceral outcomes within prisons, institutions that are "sticky" and slow to change. This means small changes in corrections spending under Democratic governors, for example, are likely durable shifts in the institutionalization and enhancement of incarceration.

There are a few reasons why these findings are especially novel. First, though some research has been done into the Democrats' complicity in the carceral state (e.g., Campbell 2018; Campbell and Schoenfeld 2013; Hinton 2016; Lynch 2009; Murakawa 2014), this is the first robust *quantitative* evidence of this phenomenon. These results suggest it is not only Democrats in particular regions or states, but all those that are facing stiff electoral competition that are pursuing these punitive policies. Also, it illustrates the pitfalls if we were to estimate this relationship using a methodological approach like OLS: we may see no significant effect of ideology on carceral outcomes and conclude partisanship is irrelevant. Electoral competition is an essential mediator in this relationship and must be considered in future work on this topic. This article does not suggest that *all* Democrats are pro-corrections, but rather that the party can be pushed in a more conservative direction to sway voters. And, most importantly, that Republicans were not the sole driving force behind the institutionalization of corrections policy.

These results provide vital evidence that the patterns of Democratic support of carceral state expansion at the federal level (e.g., Hinton 2016; Murakawa 2014) were also happening in the states. For scholars of the carceral state, this article informs the literature on the bipartisan efforts to create a more punitive criminal legal system and reveals that the states, like the federal government, had Democratic champions of these policies. Not only was the construction of the carceral state a bipartisan effort, it was directly driven by Democratic efforts to pursue more punitive measures to appeal to voters.

Acknowledgments

Thanks to Tom Clark, Jeffrey Staton, Michael Leo Owens, Zachary Peskowitz, Mackenzie Israel-Trummel, the FFSF workshopping group, and audiences at the 2019 meetings of the American Political Science Association and the Midwest Political Science Association, as well as seminar participants at Louisiana State University for feedback on this paper.

Declaration of Conflicting Interests

The author(s) declared no potential conflicts of interest with respect to the research, authorship, and/or publication of this article.

Funding

The author(s) received no financial support for the research, authorship, and/or publication of this article.

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Supplemental Material

Data, replication code, and appendix materials are available on the *Political Research Quarterly* website.

Notes

1. See https://www.c-span.org/video/?c4605559/user-clip-ann-richards-1994-prison-ad.
2. See Perkinson (2010).
3. There is mixed evidence as to whether party control of the state government influences policy outcomes (Potrafke 2018): some find liberal policies are more likely under Democratic governors (e.g., Caughey, Xu, and Warshaw 2017), whereas others find relatively little evidence of differences across Republican and Democratic states in policies like crime rates, education policy, or even corrections spending (e.g., Dilger 1998; Dynes and Holbein 2020; Grumbach 2018).
4. However, there is a debate in the literature on which candidates will moderate their positions. Some argue the electorally strong incumbents moderate more (Groseclose 2001).
5. In 2001 and 2006, 14.3 percent of Democratic governors and 11.5 percent of Republican governors mentioned crime in their annual speeches (Kousser and Phillips 2012).
6. The margin of victory variable, where 0 percent represents the cutoff for victory or defeat, is the standard cutpoint in regression discontinuity (RD) estimations (see below; Beland and Oloomi 2017; Erikson, Folke, and Snyder 2015; Hainmueller, Hall, and Snyder 2015; Hall 2015).
7. Corrections spending comes from the Justice Employment and Expenditures Series, found here: https://www.bjs.gov/index.cfm?ty=dcdetail&iid=286. Incarceration rate comes from the Prisoners series from BJS, found here: https://www.bjs.gov/index.cfm?ty=pbse&sid=40. The admissions variable comes from the National Prisoner Statistics series from 1978 to 2016, found here: https://www.icpsr.umich.edu/web/NACJD/studies/37003.
8. There is significant cross-state and cross-year heterogeneity in these three dependent variables, making fixed effects necessary. See supplemental appendix for more details and diagnostics.
9. Despite these wide usages, controversies remain as to the validity of the "as-if" random assumption around the cutpoint (Caughey and Sekhon 2011). However, there is reason to expect statewide offices are mostly "as-if" randomly distributed (Eggers et al. 2015).
10. Another option is to estimate a multiple cutoff RD, similar to Dynes and Holbein (2020), that uses multiple running variables of Democratic vote share of the governor, state house, and state senate. Although this approach is more

general, I am particularly interested in how *gubernatorial* partisanship influences corrections policy.

11. However, note this as-if-random assumption is stronger than the continuity assumption required in these models, which only requires the covariates to not jump discontinuously at the cutpoint, not that there cannot be imbalance in these covariates at all (De la Cuesta and Imai 2016).
12. Indeed, using any high-order polynomials can lead to noisy estimates (Gelman and Imbens 2019).
13. In practice, this means the bias-corrected and robust results have the same coefficient estimate but different standard errors and confidence intervals, and the conventional result has a different coefficient estimate from the other two, but the same standard error estimate as the bias-corrected estimate.

References

Alexander, Michelle. 2010. *The New Jim Crow: Mass Incarceration in the Age of Colorblindness*. New York: The New Press.

Ambar, Saladin M. 2018. *American Cicero: Mario Cuomo and the Defense of American Liberalism*. Oxford: Oxford University Press.

Barrilleaux, Charles, and Michael Berkman. 2003. "Do Governors Matter? Budgeting Rules and the Politics of State Policymaking." *Political Research Quarterly* 56 (4): 409–17.

Barrilleaux, Charles, Thomas Holbrook, and Laura Langer. 2002. "Electoral Competition, Legislative Balance, and American State Welfare Policy." *American Journal of Political Science* 46:415–27.

Beckett, Katherine. 1997. *Making Crime Pay*. Oxford: Oxford University Press.

Behrens, Angela, Christopher Uggen, and Jeff Manza. 2003. "Ballot Manipulation and the 'Menace of Negro Domination': Racial Threat and Felon Disenfranchisement in the United States, 1850-2002." *American Journal of Sociology* 109 (3): 559–605.

Beland, Louis-Philippe, and Sara Oloomi. 2017. "Party Affiliation and Public Spending: Evidence from US Governors." *Economic Inquiry* 55 (2): 982–95.

Bernick, E. Lee. 2016. "Studying Governors over Five Decades: What We Know and Where We Need to Go?" *State and Local Government Review* 48 (2): 132–46.

Besley, Timothy, Torsten Persson, and Daniel M. Sturm. 2010. "Political Competition, Policy and Growth: Theory and Evidence from the US." *The Review of Economic Studies* 77 (4): 1329–52.

Bronson, Jennifer, and E. Ann Carson. 2019. "Prisoners in 2017." https://www.bjs.gov/content/pub/pdf/p17.pdf.

Caldeira, Greg A., and Andrew T. Cowart. 1980. "Budgets, Institutions, and Change: Criminal Justice Policy in America." *American Journal of Political Science* 24:413–38.

Calonico, Sebastian, Matias D. Cattaneo, Max H. Farrell, and Rocío Titiunik. 2019. "Regression Discontinuity Designs Using Covariates." *Review of Economics and Statistics* 101 (3): 442–51.

Calonico, Sebastian, Matias D. Cattaneo, and Rocío Titiunik. 2014. "Robust Data-Driven Inference in the Regression-Discontinuity Design." *The Stata Journal* 14 (4): 909–46.

Calonico, Sebastian, Matias D. Cattaneo, and Rocío Titiunik. 2015. "rdrobust: An R Package for Robust Nonparametric Inference in Regression-Discontinuity Designs." *R Journal* 7 (1): 38–51.

Campbell, Michael C. 2018. "Varieties of Mass Incarceration: What We Learn from State Histories." *Annual Review of Criminology* 1:219–34.

Campbell, Michael C., and Heather Schoenfeld. 2013. "The Transformation of Americas Penal Order: A Historicized Political Sociology of Punishment." *American Journal of Sociology* 118 (5): 1375–423.

Canes-Wrone, Brandice, William Minozzi, and Jessica Bonney Reveley. 2011. "Issue Accountability and the Mass Public." *Legislative Studies Quarterly* 36 (1): 5–35.

Canes-Wrone, Brandice, and Kenneth W. Shotts. 2004. "The Conditional Nature of Presidential Responsiveness to Public Opinion." *American Journal of Political Science* 48 (4): 690–706.

Cattaneo, Matias D., Nicolas Idrobo, and Rocío Titiunik. 2019. *A Practical Introduction to Regression Discontinuity Designs: Foundations*. Cambridge: Cambridge University Press.

Cattaneo, Matias D., Michael Jansson, and Xinwei Ma. 2018. "Manipulation Testing Based on Density Discontinuity." *The Stata Journal* 18 (1): 234–61.

Cattaneo, Matias D., Michael Jansson, and Xinwei Ma. 2020. "Simple Local Polynomial Density Estimators." *Journal of the American Statistical Association* 115:1449–55.

Caughey, Devin, and Jasjeet S. Sekhon. 2011. "Elections and the Regression Discontinuity Design: Lessons from Close U.S. House Races, 1942-2008." *Political Analysis* 19 (4): 385–408.

Caughey, Devin, and Christopher Warshaw. 2016. "The Dynamics of State Policy Liberalism, 1936-2014." *American Journal of Political Science* 60 (4): 899–913.

Caughey, Devin, Yiqing Xu, and Christopher Warshaw. 2017. "Incremental Democracy: The Policy Effects of Partisan Control of State Government." *The Journal of Politics* 79 (4): 1342–58.

De la Cuesta, Brandon, and Kosuke Imai. 2016. "Misunderstandings about the Regression Discontinuity Design in the Study of Close Elections." *Annual Review of Political Science* 19:375–96.

Dilger, Robert Jay. 1998. "Does Politics Matter? Partisanship's Impact on State Spending and Taxes, 1985-95." *State and Local Government Review* 30 (2): 139–44.

Donnelly, Ellen A. 2017. "The Politics of Racial Disparity Reform: Racial Inequality and Criminal Justice Policymaking in the States." *American Journal of Criminal Justice* 42 (1): 1–27.

Dynes, Adam M., and John B. Holbein. 2020. "Noisy Retrospection: The Effect of Party Control on Policy Outcomes." *American Political Science Review* 114 (1): 237–57.

Eggers, Andrew C., Anthony Fowler, Jens Hainmueller, Andrew B. Hall, and James M. Snyder Jr. 2015. "On the Validity of the Regression Discontinuity Design for Estimating Electoral Effects: New Evidence from over 40,000 Close Races." *American Journal of Political Science* 59 (1): 259–74.

Enns, Peter. 2016. *Incarceration Nation*. Cambridge: Cambridge University Press.

Erikson, Robert S., Olle Folke, and James M. Snyder. 2015. "A Gubernatorial Helping Hand? How Governors Affect Presidential Elections." *Journal of Politics* 77 (2): 491–504.

Fredriksson, Per G., Le Wang, and Patrick L. Warren. 2013. "Party Politics, Governors, and Economic Policy." *Southern Economic Journal* 80 (1): 106–26.

Garland, David. 2002. *The Culture of Control: Crime and Social Order in Contemporary Society*. Oxford: Oxford University Press.

Gelman, Andrew, and Guido Imbens. 2019. "Why High-Order Polynomials Should not Be Used in Regression Discontinuity Designs." *Journal of Business & Economic Statistics* 37:447–56.

Gilmore, Ruth. 2007. *Golden Gulag: Prisons, Surplus, Crisis, and Opposition in Globalizing California*. Berkeley: American Crossroads University of California Press.

Gottschalk, Marie. 2006. *The Prison and the Gallows: The Politics of Mass Incarceration in America*. Cambridge: Cambridge University Press.

Gottschalk, Marie. 2008. "Hiding in Plain Sight: American Politics and the Carceral State." *Annual Review of Political Science* 11 (1): 235–60.

Greenberg, David F., and Valerie West. 2001. "State Prison Populations and Their Growth, 1971-1991." *Criminology* 39 (3): 615–53.

Griffin, John D. 2006. "Electoral Competition and Democratic Responsiveness: A Defense of the Marginality Hypothesis." *The Journal of Politics* 68 (4): 911–21.

Groseclose, Tim. 2001. "A Model of Candidate Location When One Candidate Has a Valence Advantage." *American Journal of Political Science* 45:862–86.

Grumbach, Jacob M. 2018. "From Backwaters to Major Policymakers: Policy Polarization in the States, 1970-2014." *Perspectives on Politics* 16 (2): 416–35.

Hainmueller, Jens, Andrew B. Hall, and James M. Snyder. 2015. "Assessing the External Validity of Election RD Estimates: An Investigation of the Incumbency Advantage." *Journal of Politics* 77 (3): 707–20.

Hall, Andrew B. 2015. "What Happens When Extremists Win Primaries?" *American Political Science Review* 109 (1): 18–42.

Hinton, Elizabeth. 2016. *From the War on Poverty to the War on Crime*. Cambridge: Harvard University Press.

Holbrook, Thomas M., and Emily Van Dunk. 1993. "Electoral Competition in the American States." *The American Political Science Review* 87 (4): 955–62.

Holian, David. 2004. "He's Stealing My Issues! Clinton's Crime Rhetoric and the Dynamics of Issue Ownership." *Political Behavior* 26 (2): 95–124.

Hurwitz, Jon, and Mark Peffley. 1997. "Public Perceptions of Race and Crime: The Role of Racial Stereotypes." *American Journal of Political Science* 41:375–401.

Hurwitz, Jon, and Mark Peffley. 2005. "Playing the Race Card in the Post-Willie Horton Era: The Impact of Racialized Code Words on Support for Punitive Crime Policy." *Public Opinion Quarterly* 69 (1): 99–112.

Imbens, Guido W., and Thomas Lemieux. 2008. "Regression Discontinuity Designs: A Guide to Practice." *Journal of Econometrics* 142 (2): 615–35.

Jacobs, David, and Jason T. Carmichael. 2001. "The Politics of Punishment across Time and Space: A Pooled Time-Series Analysis of Imprisonment Rates." *Social Forces* 80 (1): 61–91.

Jacobs, David, and Robert Helms. 1999. "Collective Outbursts, Politics, and Punitive Resources: Toward a Political Sociology of Spending on Social Control." *Social Forces* 77 (4): 1497–523.

Jensen, Jennifer M., and Thad Beyle. 2003. "Of Footnotes, Missing Data, and Lessons for 50-State Data Collection: The Gubernatorial Campaign Finance Data Project, 1977-2001." *State Politics & Policy Quarterly* 3 (2): 203–14.

Jordan, Marty P., and Matt Grossmann. 2020. *The Correlates of State Policy Project v. 2.2*. East Lansing: Institute for Public Policy and Social Research.

Kaeble, Danielle, and Mary Cowhig. 2018. "Correctional Populations in the United States in 2016." https://www.bjs.gov/content/pub/pdf/cpus16.pdf.

Key, V. O. 1949. *Southern Politics in State and Nation*. Knoxville: The University of Tennessee Press.

Klarner, Carl. 2013. "Other Scholars' Competitiveness Measures." doi:10.7910/DVN/QSDYLH.

Kohler-Hausmann, Julilly. 2015. "Guns and Butter: The Welfare State, the Carceral State, and the Politics of Exclusion in the Postwar United States." *Journal of American History* 102 (1): 87–99.

Kousser, Thad, and Justin H. Phillips. 2012. *The Power of American Governors: Winning on Budgets and Losing on Policy*. Cambridge: Cambridge University Press.

Kyckelhahn, Tracey. 2014. "State Corrections Expenditures, FY 1982-2010." http://www.bjs.gov/content/pub/pdf/scefy8210.pdf.

Lee, David S., and Thomas Lemieux. 2010. "Regression Discontinuity Designs in Economics." *Journal of Economic Literature* 48 (2): 281–355.

Leigh, Andrew. 2008. "Estimating the Impact of Gubernatorial Partisanship on Policy Settings and Economic Outcomes: A Regression Discontinuity Approach." *European Journal of Political Economy* 24 (1): 256–68.

List, John A., and Daniel M. Sturm. 2006. "How Elections Matter: Theory and Evidence from Environmental Policy." *The Quarterly Journal of Economics* 121 (4): 1249–81.

Lynch, Mona. 2009. *Sunbelt Justice: Arizona and the Transformation of American Punishment*. Palo Alto: Critical Perspectives on Crime and Law, Stanford University Press.

Mauer, Marc. 2016. "Bill Clinton, 'Black Lives' and the Myths of the 1994 Crime Bill." https://www.themarshallproject.

org/2016/04/11/bill-clinton-black-lives-and-the-myths-of-the-1994-crime-bill.

McDonald, Michael. 2012. "Turnout 1980-2012." *United States Election Project* 15:2012.

Murakawa, Naomi. 2014. *The First Civil Right*. Oxford: Oxford University Press.

Percival, Garrick. 2016. *Smart on Crime*. Boca Raton: CRC Press.

Perkinson, Robert. 2010. *Texas Tough: The Rise of America's Prison Empire*. New York: Metropolitan Books.

Pfaff, John. 2017. *Locked in: The True Causes of Mass Incarceration—and How to Achieve Real Reform*. New York: Basic Books.

Phelps, Michelle S., and Devah Pager. 2016. "Inequality and Punishment: A Turning Point for Mass Incarceration?" *The ANNALS of the American Academy of Political and Social Science* 663 (1): 185–203.

Potrafke, Niklas. 2018. "Government Ideology and Economic Policy-Making in the United States: A Survey." *Public Choice* 174 (1–2): 145–207.

Riker, William H. 1986. *The Art of Political Manipulation*. New Haven: Political Science, Yale University Press.

Scheingold, Stuart A. 1995. "Politics, Public Policy, and Street Crime." *The ANNALS of the American Academy of Political and Social Science* 539 (1): 155–68.

Schlosser, Eric. 1998. "The Prison-Industrial Complex." *The Atlantic Monthly* 282 (6): 51–77.

Sides, John. 2006. "The Origins of Campaign Agendas." *British Journal of Political Science* 36 (3): 407–36.

Simon, Johnathan. 2007. *Governing through Crime*. Oxford: Oxford University Press.

Smith, Kevin B. 2004. "The Politics of Punishment: Evaluating Political Explanations of Incarceration Rates." *The Journal of Politics* 66 (3): 925–38.

Spelman, William. 2009. "Crime, Cash, and Limited Options: Explaining the Prison Boom." *Criminology & Public Policy* 8 (1): 29–77.

Stucky, Thomas D., Karen Heimer, and Joseph B. Lang. 2007. "A Bigger Piece of the Pie? State Corrections Spending and the Politics of Social Order." *Journal of Research in Crime and Delinquency* 44 (1): 91–123.

Sulkin, Tracy. 2005. *Issue Politics in Congress*. Cambridge: Cambridge University Press.

The Baltimore Sun. 1994. "Clinton Joins the Crimebusters." January 27. https://www.baltimoresun.com/news/bs-xpm-1994-01-27-1994027202-story.html.

The Pew Center on the States. 2009. "One in 31: The Long Reach of American Corrections." https://www.pewtrusts.org/~/media/assets/2009/03/02/pspp_1in31_report_final_web_32609.pdf.

Thorpe, Rebecca U. 2015. "Perverse Politics: The Persistence of Mass Imprisonment in the Twenty-First Century." *Perspectives on Politics* 13 (3): 618–37.

Tonry, Michael. 2010. "The Social, Psychological, and Political Causes of Racial Disparities in the American Criminal Justice System." *Crime and Justice* 39 (1): 273–312.

Unah, Isaac, and Elizabeth Coggins. 2013. "When Governors Speak up for Justice: Punishment Politics and Mass Incarceration in the American States." *Journal of Political Science and Public Affairs* 1:1–12.

Wacquant, Loic. 2009. *Punishing the Poor*. Durham: Duke University Press.